EXECUTIVE ORDER

Authorizing the Alien Property Custodian to sell certain property upon the New York Curb Exchange.

By virtue of the authority vested in me by an Act of Congress entitled "An Act to define, regulate, and punish trading with the enemy and for other purposes," approved October 6, 1917, known as the "Trading with the Enemy Act," and the amendments to such act embodied in "An Act making appropriations for the fiscal year ending June 30th, 1918, and prior fiscal years on account of war expenses and for other purposes," approved March 28th, 1918, and the amendment to such act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30th, 1919, and prior fiscal years on account of war expenses, and for other purposes," approved November 4th, 1918, and all other amendments thereto, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell upon the New York Curb Exchange, without previous advertising, at the price bid for the same, as, if, and when offered, not less than $111 per share, the following securities in such lots, and at such times as to him, or his authorized agent may seem advisable, viz:

174 shares of the American Light & Traction Company preferred stock, held in trust 112, Report 127, as the property of Carl E. Hieronymus, Germany.

My reasons for the foregoing determination and order are:

1st. That the ancillary administrator of the above named Carl E. Hieronymus, deceased, requested the sale of this property.

2nd. That the sale of the said stock and the investment of the proceeds in Liberty Bonds or Certificates of Indebtedness of the United States Government would insure a fair income upon the investment and would prevent a possible loss of income through a decline of earnings of the corporation and consequent reduction of the dividend, and would conserve the principal, preventing a possible depreciation thereof by reason of a decline in the market price.

113

3rd. That the sale of the said stock will result in the realization in tangible form of a great increase in principal by virtue of the appreciation of the market value of the stock since its original purchase, and since its seizure by the Alien Property Custodian.

4th. That a public or other advertisement of the sale of the said stock or attempted sale at auction would be a useless formality involving unnecessary expense and inconvenience and would cause such adelay as to imperil the realization of a price equal to that now prevailing on the open market.

William Tilley,

The White House,
December 9, 1925.

4353-7